



**NDIS Quality
and Safeguards
Commission**

For the attention of the:
Chief Executive Officer / Board Chair / Principal
MCLEAN, RICHARD WILLIAM
Trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
24 Rosella Court
Ocean Grove VIC 3226

30 June 2019

NDIS Quality and Safeguards Commission
Your new certificate of registration as a registered NDIS provider

Dear Chief Executive Officer

In June 2019, all registered providers in the Australian Capital Territory (ACT), Victoria (Vic) Queensland (Qld), Tasmania (Tas) and the Northern Territory (NT) received a provider information email to let them know what is happening with the transfer of registration as providers of supports under the National Disability Insurance Scheme (NDIS). This followed an email to all providers in the ACT, Vic, Qld, Tas and the NT in May 2019. You can find a copy of both emails on the NDIS Commission website at www.ndiscommission.gov.au.

Your registration to provide supports under the NDIS will be transferred from the National Disability Insurance Agency (NDIA) to the NDIS Commission on 1 July 2019, by the operation of the National Disability Insurance Scheme (Quality and Safeguards Commission and Other Measures) Transitional Rules 2018. Under those rules, the Commissioner will register MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) as a registered NDIS provider under section 73E of the National Disability Insurance Scheme Act 2013 (the Act).

The Commissioner of the NDIS Commission is now issuing you with its Certificate of Registration in accordance with paragraph 73E(4)(b) of the Act. This certificate is attached and will apply to MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) from 1 July 2019. Attached is an information guide relating to NDIS provider obligations under the NDIS Commission.

Your Registration ID is: 4-433J-962

You will need this Registration ID when contacting the NDIS Commission in relation to your registration and in order to access the NDIS Commission Portal located on the NDIS Commission website.

Certificate of registration

The details of your registration, including any classes of supports (previously referred to as groups of supports) that you are registered to provide, and the conditions of registration are identified in the Certificate of Registration. It is important that you are familiar with the conditions that apply to your registration and your responsibilities as a registered NDIS provider.

Registration scope

Given you will be a registered NDIS provider from 1 July 2019, it is important to be registered in relation to all supports and services that you deliver to participants with NDIA managed plans.

The transfer of provider registration is happening in the ACT, Vic, Qld, Tas and the NT as of 1 July 2019, NSW and SA transitioned on 1 July 2018. The NDIS Commission will have authority to register NDIS providers operating in all states and territories except Western Australia (WA) from 1 July 2019.

If you are delivering, or intending to deliver, supports or services to participants who reside in WA, you will need to continue your registration with the NDIA and meet the quality and safeguarding requirements in WA. More information about this is available at <https://www.ndiscommission.gov.au/about/start-dates/wa>.

Register of NDIS providers

Under section 73ZS of the Act, the Commissioner of the NDIS Commission maintains a public register of registered NDIS providers. The register is published on the NDIS Commission's website at www.ndiscommission.gov.au.

If you consider the information about you on the NDIS Provider register is inaccurate, please contact the NDIS Commission by sending an email to registration@ndiscommission.gov.au.

Next steps

Your registration will transfer to the NDIS Commission as of 1 July 2019. You will then need to start getting ready to apply for renewal of your registration.

You will need to make an application for registration under the new NDIS Commission arrangements before the end of the period specified in your Certificate of Registration. This will involve the following:

1. Submitting an application for renewal using the NDIS Commission Portal and your Registration ID. You will be required to confirm key information about your registration, including the key personnel.
2. You will also:
 - a. Undertake a self-assessment of your organisation against the NDIS Practice Standards relevant to the supports and services you provide to participants.
 - b. Arrange for an assessment against the NDIS Practice Standards. This involves a NDIS Commission approved quality auditor assessing your organisation, using either a verification or a certification method, against relevant NDIS Practice Standards. Information about approved quality auditors is published on the NDIS Commission website. Your Certificate of Registration attached specifies the timing of quality audits for your organisation.
3. To retain your organisation's registration, your organisation must submit the registration renewal application with the NDIS Commission by **31/03/2020**. This date is the end of the period of registration as stated on your Certificate of Registration. If your organisation does not submit the renewal application by this date, your organisation's status as a registered NDIS provider will lapse.

Please be aware that any registration groups your organisation is currently registered to provide to participants residing in the ACT, Vic, Qld, Tas or the NT will transfer to your registration with the NDIS Commission on 1 July 2019. As part of the registration renewal process there will be the opportunity to vary these where your organisation intends to provide different supports or services.

NDIS Commission Portal

All users linked to your organisation in the NDIA's Myplace portal will also have access to your organisation's details in the NDIS Commission Portal.

Your organisation will be required to use the NDIS Commission Portal to undertake the registration renewal process. Other functionality available on the NDIS Commission Portal, including how to provide access for additional users, is detailed on the NDIS Commission Portal webpage <https://www.ndiscommission.gov.au/providers/provider-registration/ndis-commission-portal>.

On 1 July 2019, the 'My Reportable Incidents' page will be available via the NDIS Commission Portal. This will be the way registered NDIS providers in all states and territories (except for Western Australia) notify the NDIS Commission of Reportable Incidents.

Information for providers registered for Specialist Positive Behaviour Support (110)

To support safeguarding for people subject to restrictive practices, the National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that a registered provider of specialist behaviour support services must use a behaviour support practitioner whom the NDIS Quality and Safeguards Commissioner considers suitable. To comply with this requirement, section 29 requires that specialist behaviour support providers notify the NDIS Commission by 31 July 2019 of their behaviour support practitioner(s).

To notify the NDIS Commission of your behaviour support practitioner(s) please go to the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support> and follow the link: Notification of Behaviour Support Practitioners (s29). Details of your practitioner(s) can be entered into this form and submitted online to the NDIS Commission.

On the basis of the information collected from your notification, your practitioner(s) will be considered provisionally suitable as NDIS behaviour support practitioners and advised of this in writing.

Information for providers implementing a regulated restrictive practice in accordance with a behaviour support plan

The National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that any provider using a regulated restrictive practice must only use the practice in accordance with a behaviour support plan. The provider must also report monthly to the NDIS Commission on the use of restrictive practices. This applies to all new behaviour support plans developed from 1 July 2019 that contain regulated restrictive practices. There are specific state and territory transitional arrangements for what to do in relation to behaviour support plans that are already in place at 1 July 2019. Further information is available at the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support>.

Please find attached your organisation's Certificate of Registration, including conditions of registration.

NDIS Provider Registration
NDIS Quality and Safeguards Commission
[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au
PO Box 210
PENRITH NSW 2750



**NDIS Quality
and Safeguards
Commission**

Certificate of Registration

Issued pursuant to subsection 73E(4) of the National Disability Insurance Scheme Act 2013
(the NDIS Act)

As of 1 July 2019, MCLEAN, RICHARD WILLIAM (72066207615) of 24 Rosella Court Ocean Grove VIC
3226 is a **registered NDIS provider**

Registration ID:	4-433J-962
Legal name:	MCLEAN, RICHARD WILLIAM
Business/trading name:	Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
ABN:	72066207615
ACN:	Not specified
Primary address / head office:	24 Rosella Court Ocean Grove VIC 3226
Registered provider in relation to:	The provision of the following classes of supports under participants' plans.
Registration classes:	Therapeutic Supports
Period for which the registration is in force:	From 1 July 2019 until 31 Mar 2020

Note: If you submit an application for further registration before the date identified above as the end of the period for which your registration is in force, then by operation of section 73K of the NDIS Act, your registration will continue in force until the Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions of registration

Your registration as a registered NDIS provider is subject to the conditions set out in the attachment to this Certificate of Registration.

Graeme Head AO

Commissioner

NDISCommission.gov.au

registration@ndiscommission.gov.au

PO Box 210

PENRITH NSW 2750

Conditions of registration under section 73F of the National Disability Insurance Scheme Act 2013 (the NDIS Act)

Your registration as a registered NDIS provider is subject to the following conditions:

Standard conditions of registration – subsection 73F(2) of the NDIS Act

1. There are standard conditions which apply to all registered NDIS providers under section 73F(2) of the Act. These are:
 - a. a condition that you comply with all applicable requirements imposed by a law of the Commonwealth or a law of the State or Territory in which you operate as a registered NDIS provider
 - b. a condition that you comply with all applicable requirements of the NDIS Code of Conduct
 - c. a condition that you comply with all applicable standards and other requirements of the NDIS Practice Standards
 - d. a condition that you comply with all applicable requirements relating to record keeping prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Q
 - e. a condition that you implement and maintain the applicable complaints management and resolution system in accordance with section 73W
 - f. a condition that you comply with all applicable requirements relating to complaints prescribed by the National Disability Insurance Scheme rules for the purposes of section 73X
 - g. a condition that you implement and maintain the applicable incident management system in accordance with section 73Y
 - h. a condition that you comply with all applicable requirements relating to reportable incidents prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Z
 - i. a condition that you give to the NDIS Commissioner, on request, information specified in the request within the period specified in the request (which must not be less than 14 days).

Conditions imposed under section 73G of the NDIS Act

2. If, before the date specified on your Certificate of Registration as the last date of your period of registration, you submit an application for further registration you must take all action reasonably necessary to ensure that an approved quality auditor (as defined by the NDIS Act):
 - (a) completes a quality audit entailing an assessment of you against the applicable standards and other requirements prescribed by the NDIS Practice Standards (as referred to in paragraph 73E(1)(a) of the Act and
 - (b) submits the results of the completed audit to the NDIS Commission within 9 months after that last date.

Note: If you submit an application for further registration before the date specified on your Certificate of Registration as the last date of your period of registration, then by operation of section 73K of the NDIS Act, the registration will continue in force until the NDIS Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions imposed by rules made under sections 73H and 209 of the NDIS Act

3. It is a condition of your registration that you comply with:

- (a) Part 4 of the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*; and
- (b) Parts 2 – 4 (as applicable) of the *National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018*; and
- (c) if you are registered to provide specialist disability accommodation, Parts 2 and 5 of the *National Disability Insurance Scheme (Specialist Disability Accommodation Condition) Rules 2018*.

Note: Links to and information about these conditions are available at www.ndiscommission.gov.au .